



6500 Corporate Drive, Johnston, IA 50131 | (515) 270-9030 | (800) 362-2720 | FAX (515) 270-5383 | www.heartlandaea.org

2026-2027 Service Agreement

between

Heartland Area Education Agency

and

Dallas Center-GrimesCommunity School District

Heartland Area Education Agency, hereinafter referred to as HAEA, and Dallas Center-GrimesSchool District hereinafter referred to as the District, hereby enter into an agreement for educational services between July 1, 2026 to the completion of the project and no later than until June 30, 2027.

Scope of the Work will be as follows: HAEA Administrator, Misty Christensen, will provide services to support the ongoing continuous improvement and coaching at the District. A total of 38 days of service will be provided.

Roles and Responsibilities:

HAEA will:

- Assign a qualified Consultant who is licensed and experienced in providing education services in compliance with Iowa state regulations.
- Ensure that the Consultant performs duties as described.
- Provide ongoing support to the Consultant as needed.

The District will:

- Provide the Consultant with access to the necessary materials, information, and personnel required to fulfill the scope of the work.
- Ensure collaboration between the consultant and District staff to support the scope of the work.
- Pay the Agency for the services rendered in accordance with the agreed-upon payment.

The Consultant will:

- The Consultant will maintain regular and transparent communication, updates on progress, and any changes that may impact the scope of the work or delivery of services.
- The Consultant will deliver services with professional integrity and alignment to district goals.

Ongoing Professional Training for the Consultant: 10% of the consultant's time will be dedicated to planning and their own professional learning.

Employment: Any consultant(s) employed pursuant to this Agreement shall be considered the sole employees of HAEA and shall be governed by the existing personnel policies and practices of HAEA. HAEA shall have the sole authority for recruiting, hiring, training, evaluation, disciplining and terminating all such personnel.

Payment Terms: The District agrees to pay a total of **\$39,729.00** for the work outlined above. HAEA will invoice the District at the end of each fiscal quarter. Should the district request additional support beyond the scope of this project, HAEA consultants are available at an additional rate of \$940/day. Administrators are available at an additional rate of \$1230/day.



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Term and Termination: This term of this Agreement is from July 1 2026 through June 30, 2027. This Agreement may be automatically renewed for successive one-year terms by mutual written agreement of the parties, no later than February 1, for the term beginning July 1 of that calendar year.

This Agreement may be terminated only as follows:

- Automatically at the end of the current term if the parties have not agreed to extend the contract by February 1 of the current contract year.
- By mutual written agreement executed by both parties.
- In the event of a material breach of this Agreement by either party, provided the non-breaching party provide 30-days written notice to the other party, and the other party has not cured the breach within 30 days of receipt of written notice.

Early Termination: In the event the District chooses to terminate this agreement prior to its completion for any reason other than a material breach by HAEA, the District agrees to assume full financial responsibility for the total contracted amount. This includes payment for all services rendered up to the date of termination and any remaining balance outlined in the agreement, regardless of whether those services have been completed. The District acknowledges that this provision ensures compensation for HAEA's allocation of time, resources, and opportunity costs incurred in anticipation of fulfilling the contract in its entirety.

Notices: Any notice required or permitted by this Agreement will be deemed delivered, and thus effective, when personally received, or three days after being placed in the United States Mail, postage prepaid and addressed to the apathy as detailed below:

Dallas Center-Grimes Community School District
Attention: Dr. Scott Blum, Superintendent
2405 W. 1st Street
Grimes, Iowa 50111

Heartland Area Education Agency
Attention: Dr. Cindy Yelick, Chief Administrator
6500 Corporate Drive
Johnston, Iowa 50131

Dispute Resolution: Any disputes arising from or in connection with this Service Agreement will be resolved through mutual discussion and negotiation between the Chief Administrator of HAEA and the Superintendent of the District. If the Parties through their respective Boards are unable to agree as to the interpretation or operation of this Agreement, a committee made up of two members from each board, the Superintendent of the District, and the Chief Administrator of HAEA may attempt mediation. If this mediation is not successful, a dispute may be submitted to arbitration. The parties will select a single arbitrator who is willing to serve and who is knowledgeable about Iowa school matters. Each Party will pay its respective costs of arbitration including half of the arbitrator's fee and the results shall be binding.

Amendments: This agreement may be amended only by a written agreement signed by both parties.



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Governing Law: The agreement shall be governed by and construed by the laws of the State of Iowa.

Severability: If any provision of this Agreement is held by a court of competent jurisdiction to be invalid or unenforceable, then such provisions shall be modified to the extent necessary to be valid and enforceable, and all other provisions of this Agreement shall remain in full force and effect.

No Waiver: The failure of either of the parties to enforce any right or provision under this Agreement shall not constitute a waiver of such right or provision unless acknowledged and agreed to by such party in writing.

Assignment: Neither party may assign any right or obligation under this Agreement, in whole or in part, without the other party's prior express written consent. Subject to the foregoing, this Agreement will be binding upon and will inure to the benefit of the parties and their respective successors and assignees.

Independent Contractors: The relationship between the parties is that of independent contract. No joint venture, partnership, employment, or agency relationship exists between the parties as a result of this Agreement. Neither party has the authority to create any obligations for the other, or to bind the other to any representation, statement or document.

This Agreement may be executed in one or more counterparts, each of which shall be deemed to be an original, but all of which together shall constitute the same instrument.

Heartland AEA Board President

Date

Dallas Center-Grimes Community School District Board President

Date